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CASE #	CASE NAME	HEARING NAME
CVRI2400498	ZETA VS COUNTY OF RIVERSIDE	MOTION TO CONTINUE TRIAL DATE

Tentative Ruling:

Moving party: Plaintiff, Amy Zeta

Opposition: Defense, County of Riverside and Melissa Moore

Continuances of trials are disfavored and may be granted only on an affirmative showing of good cause. [Cal Rules of Ct 3.1332\(c\)](#). Although dates assigned for trial are firm, and parties and their attorneys must regard these dates as certain to ensure prompt disposition of civil cases ([Cal Rules of Ct 3.1332\(a\)](#)), judges must consider each request for a continuance on its own merits and should grant a continuance when good cause for the continuance is shown (see [Cal Rules of Ct 3.1332\(c\)](#)).

A party seeking a continuance of the date set for trial, whether contested or uncontested or stipulated to by the parties, must make the request for a continuance by a noticed motion or an Ex Parte application with supporting declarations (CRC 3.1332(b)). Continuances of trials are disfavored. The court may grant a continuance only on an affirmative showing of good cause requiring the continuance (CRC 3.1332(c)). A stipulation that good cause exists does not constitute good cause.

The Trial Court Delay Reduction Act also requires judges to commence trials on the date scheduled and to adopt and apply a firm, consistent policy against continuances, to the maximum extent possible and reasonable, at all stages of the litigation. [Govt C § 68607\(g\)](#).

Judges have inherent authority to continue matters before them. Although delaying litigation is generally disfavored because of efficiency concerns ([Govt C § 68607](#)). Generally, judges have broad discretion in deciding whether to grant a request for a continuance. [People v Caro \(2019\) 7 C5th 463, 499, 248 CR3d 96](#).

Good cause may exist for a continuance of trial on the grounds of the failure to complete discovery only if the parties have been diligent in attempting to complete discovery. Pursuant to CCP §2024.020, any party shall be entitled as a matter of right to complete discovery proceedings before the 30th day, and to have motions concerning discovery heard on or before the 15th day before the date initially set for trial of the action. (CCP §2024.020(a).) “The purpose of imposing a time limit on discovery is to expedite and facilitate trial preparation and to prevent delay...[T]o be effective the cutoff date must be firm or some litigants will manipulate the proceedings to avoid the cut-off date.” (*Beverly Hosp. v. Sup. Ct.* (1993) 19 Cal.App.4th 1289, 1295.)

Counsel, Mr. Aloupas, indicates in his declaration that:

“After meeting and conferring on Defendants’ initial responses served September 10, 2025, Defendants agreed to supplement their discovery responses. Due to various reasons provided by the defense, such as the time it was taking to gather responsive documents, as well as the time it took to verify the responses, Defendants were not able to serve supplemental responses to the initial written discovery until April 2, 2026.”

“As stated above, it took the County of Riverside six days short of a year to respond to Plaintiff’s initial set of written discovery and produce responsive documents. Once the document production was completed, there were approximately 5,000 pages of documents to review.”

“As of now, there are over 10,000 pages of documents that have been exchanged in this litigation to date...”

Counsel indicates that approximately 23 depositions still need to be completed.

This matter was filed on 1/29/2024 with the First Amended Complaint filed 5/16/2024. The fact that Plaintiff has waited until now to set the depositions of over 20 individuals does not show diligence.

The Court does not find good cause to continue the 2/19/2026 trial date for this reason.

Defendant substituting its counsel does not rise to good cause to delay the trial which has been continued three times to date. When a party requests substitution of counsel at a time or under circumstances that will delay the trial, the court may deny the request. See CCP §128; Flynn v Fink (1923) 60 CA 670, 673. See also Berger v Mantle (1936) 18 CA2d 245, 249 (plaintiff and defendant not the only interested parties; court itself as arm of government in service to public can demand orderly and prompt disposition of case). In this matter, Plaintiff has not substituted counsel, but merely added or associated in additional counsel.

To the extent that Plaintiff is asking this court to continue the 2/19/2027 trial date because newly associated counsel may have another trial in the month of February 2027, the Court likewise, does not find good cause.

The court does not find good cause for the continuance of the 2/19/2027 trial date. Request to continue is denied.

Motion to set Aside (CCP 473(b))

Requirements for Relief under the Discretionary Provision of CCP §473(b)

Mistake, Inadvertence, Surprise, or Excusable Neglect

CCP §473(b) grants the trial court discretion to vacate a default judgment (and/or any other step taken in a case, including dismissal, entry of default, or an order) on the basis of “mistake, inadvertence, surprise, or excusable neglect.” The moving party bears the burden of demonstrating by a preponderance of the evidence that at least one of these conditions is met. Hopkins & Carley v. Gens (2011) 200 CA4th 1401, 1410, 135 CR3d 1, 8–9; Luz v. Lopes (1960) 55 C2d 54, 62, 10 CR 161, 165–166.

Mistake

Mistake may be one of fact or law. Mistake of fact occurs when a person understands the facts to be other than they are; a mistake of law occurs when a person knows the facts as they really are, but has a mistaken belief as to the legal consequences of those facts. People v. Kelly, 35 Cal.App.2d 571, 574, 96 P.2d 372.

Under CCP §473(b), relief may be granted if the moving party demonstrates a *material* mistake of fact or law, regardless of whether the mistake was made by a party or by his or her attorney. However, because a lawyer has a duty to look up the law if he or she does

not know it, an attorney's mistake of law will be grounds for relief only if it was reasonable. *Anderson v. Sherman* (1981) 125 CA3d 228, 178 CR 38; *McCormick v. Board of Supervisors*, 198 CA3d 352, 360, 243 CR 627, 621. The controlling factors in determining whether an attorney's mistake was reasonable are: (1) the reasonableness of the misconception; and (2) the justifiability of the failure to determine the correct law. *Anderson v. Sherman* (1981) 125 CA3d 228, 178 CR 38.

Counsel indicates that "During the time that counsel for the parties was discussing moving the trial from November 20, 2026, to the present February 19, 2027, date, Ms.(sic) Aloupas committed mistake in agreeing to keep the related discovery deadlines tethered to the October 16, 2026, date. (Aloupas Decl., ¶ 27.) At the time, Mr. Aloupas thought that he would be able to get the needed depositions and further discovery, but Mr. Aloupas, as a solo practitioner, became quickly and completely overwhelmed with the case. (Ibid.)"

The Court finds that Mr. Aloupas' explanation of his "mistake" in agreeing that discovery would close based on the 11/20/2026 trial date to be reasonable or justifiable. It seems to the Court that Mr. Aloupas miscalculated what he would be able to accomplish and overpromised. The Court finds this explanation reasonable. Accordingly, the Court will reopen discovery and all discovery dates are tethered to the new 2/19/2027 trial date.

Inadvertence

Relief may be granted if the moving party demonstrates "inadvertence." Inadvertence is defined as lack of heedfulness or attentiveness, inattention, fault from negligence. *Greene v. Montana Brewing Co.*, 32 Mont. 102, 79 P. 693, 694 (internal citations omitted). Inadvertence in the abstract is no plea on which to vacate a default. *Shearman v. Jorgensen* (1895) 106 Cal. 483, 485, 39 P. 863.

Notably, Mr. Aloupas does not argue he acted inadvertently. Based on the record before the Court, the Court cannot find that Mr. Aloupas acted with inadvertence.

Surprise

Under CCP §473(b), relief may also be granted if the moving party demonstrates "surprise." Surprise refers to "some condition or situation in which a party...is unexpectedly placed to his injury, without any default or negligence of his own, which ordinary prudence could not have guarded against." *Credit Managers Ass'n of So. Calif. v. National Independent Business Alliance* (1984) 162 CA3d 1166, 1173, 209 CR 119, 123; *Hearn v. Howard* (2009) 177 CA4th 1193, 1206, 99 CR3d 642, 654.

The record before the Court does not support a finding of Surprise.

Excusable Neglect

Discretionary relief may be granted where the moving party can show "excusable neglect," i.e., where the moving party can demonstrate that the default could not have been avoided through the exercise of ordinary care. See *Shapiro v. Clark* (2008) 164 CA4th 1128, 1141–1142, 80 CR3d 398; *Jackson v. Bank of America* (1983) 141 CA3d 55, 58, 190 CR 78, 80. The issue boils down to whether the moving party has shown a reasonable excuse for the default. See *Shapiro v. Clark* (2008) 164 CA4th 1128, 1141–1142, 80 CR3d 398, 410 (rejecting "categorical statements about what can be found to constitute excusable neglect").

As noted above, the Court finds that Mr. Aloupas' mistake was reasonable. Likewise, the Court finds that any neglect on Mr. Aloupas' part was excusable.

Summary:

Motion to continue the 2/19/2027 trial date is denied. Request to reopen discovery bases on mistake and excusable neglect is granted.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2505826	NGUYEN VS NGUYEN	DEMURRER
CASE #	CASE NAME	HEARING NAME
CVRI2505826	NGUYEN VS NGUYEN	MOTION TO STRIKE COMPLAINT

Tentative Ruling:

Moving party: Defendant Tam Nguyen, dba Tam Nguyen, Broker

Responding party: Plaintiffs Blossom Nguyen and Tan Van Ta

This real estate action arises between Plaintiffs Blossom Nguyen and Tan Van Ta ("Plaintiffs") and Defendants Lan Le ("Agent"), Tam Nguyen, an individual doing business as Tam Nguyen, Broker ("Broker"), and Lending Chain Inc. ("Lending Chain").

On October 14, 2025, Plaintiffs filed a Complaint against Agent, Broker, and Does 1-20. The operative complaint is the First Amended Complaint ("FAC"), which Plaintiffs filed on March 17, 2026, against Agent, Broker, and Lending Chain as Doe 1. The FAC asserts the following causes of action: (1) Fraud/Intentional Misrepresentation; (2) Conversion (as to Agent only); (3) Breach of Fiduciary Duty; (4) Constructive Fraud; (5) Breach of Contract (as to Agent and Broker only); (6) Negligence/Negligent Supervision (as to Broker only); (7) Fraudulent Business Practices (Bus. & Prof. Code § 17200); (8) Unjust Enrichment/Money Had and Received; (9) Civil Theft/Identity Theft (PC § 496(c); Civ. Code §§ 1798.92; 1798.93); (10) Intentional Infliction of Emotional Distress; (11) Violation of Civil Code § 2079.16 (as to Agent and Broker only); (12) Aiding and Abetting Fraud (as to Lending Chain only); and (13) Negligent Supervision of Mortgage Origination (as to Lending Chain only).

In the FAC, Plaintiffs allege that they are Vietnamese American homeowners who speak English as a second language. Plaintiffs allege that Agent was a close family friend who had assisted them with two prior real estate transactions.

In early 2023, Plaintiffs engaged Agent and Broker to sell their property located at 9422 Hawthorne Avenue, Riverside, California 92503 ("the Property"). The Property had an existing mortgage payoff of \$130,000.00, and the sale was expected to generate \$400,00.00 in net proceeds after the mortgage payoff and escrow fees. On August 30, 2023, the Property was sold for \$565,000.00.

Plaintiffs allege that during the sale process, Agent made numerous misrepresentations that induced Plaintiffs to obtain over 20 cashier's checks totaling over \$118,00.00. Plaintiffs allege that Agent represented that this money was required to close escrow, but misappropriated the funds for herself. Plaintiffs further allege that Broker, Agent, and Lending Chain tricked them into signing a \$263,000.00 cash-out refinance